



**Order under Section 69
Residential Tenancies Act, 2006**

Citation: TORONTO COMMUNITY HOUSING CORP v ARUNTHAVARAJAH, 2025 ONLTB 97224

Date: 2025-12-18

File Number: LTB-L-083038-25

In the matter of: 605, 14 RAYOAK DR
Toronto ON M3A2Y4

Between: TORONTO COMMUNITY HOUSING CORP Landlord

And

ANOJA ARUNTHAVARAJAH Tenant

TORONTO COMMUNITY HOUSING CORP (the 'Landlord') applied for an order to terminate the tenancy and evict ANOJA ARUNTHAVARAJAH (the 'Tenant') because the Tenant did not pay the rent that the Tenant owes.

This application was heard by videoconference on December 15, 2025.

The Landlord's Agent Dale Maingot, and the Tenant attended the hearing. The Tenant spoke to Tenant Duty Counsel prior to the start of this proceeding.

Determinations:

1. The Landlord served the Tenant with a valid Notice to End Tenancy Early for Non-payment of Rent (N4 Notice). The Tenant did not void the notice by paying the amount of rent arrears owing by the termination date in the N4 Notice or before the date the application was filed.
2. As of the hearing date, the Tenant was still in possession of the rental unit.
3. The lawful rent is \$319.00. It is due on the 1st day of each month.

4. Based on the Monthly rent, the daily rent/compensation is \$10.49. This amount is calculated as follows: \$319.00 x 12, divided by 365 days.
5. The Tenant has not made any payments since the application was filed.
6. The rent arrears owing to December 31, 2025 are \$3,252.00.
7. The Landlord incurred costs of \$186.00 for filing the application and is entitled to reimbursement of those costs.
8. There is no last month's rent deposit.
9. I have considered all of the disclosed circumstances in accordance with subsection 83(2) of the *Residential Tenancies Act, 2006* (the 'Act'), and find that it would not be unfair to postpone the eviction until February 28, 2026, pursuant to subsection 83(1)(b) of the Act. This extension of time accounts for both parties' evidence in relation to their financial circumstances.
10. The Landlord's Agent submitted that the parties have attempted to work out a payment plan to no avail, since the application was filed. The Tenant's evidence in relation to entering a payment plan illustrated that a payment plan would not be viable given the Tenant's current life circumstances, employment status, health concerns, income sources and monthly expenses. The Tenant would have difficulty covering the monthly rent, her other expenses, let alone the arrears.
11. The Tenant testified to the impact an eviction would have on her and her children, explaining that they are a single income family, and her three children (17, 15, 9 years of age), attend school in the local area, and have significant connection to their schools, their neighbours, and the community and thus the Tenant requested and extended eviction to June 2026. The Tenant also testified to the financial challenges looking for a new home would bring given that they are a single income family in which the Tenant is the sole income earner, however has had medical issues this past year.
12. In response to questioning from the Board, the Landlord's Agent explained that any further delay in granting the application would be financial prejudicial to the Landlord, and that the Landlord relies on rent to pay expenses related to the rental unit. Moreover, he emphasized that the Tenant had not provided any documentary evidence to substantiate her claims of health concerns and or income and expenses.
13. Considering all of the evidence and, notwithstanding the Landlord may face some financial prejudice, I find that, pursuant to subsection 83(1)(b) of the Act that it would not be unfair to the Landlord to delay the eviction until February 28, 2026, due to the significant impact an early eviction would have on the Tenant and her children, whom have resided in the rental

unit the last 16 years. The Tenant testified the children knew no other home, given they grew up in the rental unit.

14. Given the Tenant's connection to the community and schooling needs of her children, I am satisfied that they may experience challenges securing housing that fits their needs such that more time is required. By contrast, the Landlord, while I acknowledge may face further financial prejudice, and after considering the totality of the circumstances I conclude that delaying eviction to February 28, 2026, is fair and appropriate.
15. The extension of time will provide the Tenant time to secure her future income sources/funds to pay the arrears or to find a new place to live for herself and her children.

It is ordered that:

1. The tenancy between the Landlord and the Tenant is terminated unless the Tenant voids this order.
2. **The Tenant may void this order and continue the tenancy by paying to the Landlord or to the LTB in trust:**
 - \$3,438.00 if the payment is made on or before December 31, 2025. See Schedule 1 for the calculation of the amount owing.

OR

 - \$3,757.00 if the payment is made on or before January 31, 2026. See Schedule 1 for the calculation of the amount owing.

OR

 - \$4,076.00 if the payment is made on or before February 28, 2026. See Schedule 1 for the calculation of the amount owing.
3. The Tenant may also make a motion at the LTB to void this order under section 74(11) of the Act, if the Tenant has paid the full amount owing as ordered plus any additional rent that became due after February 28, 2026 but before the Court Enforcement Office (Sheriff) enforces the eviction. The Tenant may only make this motion once during the tenancy.
4. **If the Tenant does not pay the amount required to void this order the Tenant must move out of the rental unit on or before February 28, 2026.**
5. If the Tenant does not void the order, the Tenant shall pay to the Landlord \$3,276.35. This amount includes rent arrears owing up to the date of the hearing and the cost of filing the application. See Schedule 1 for the calculation of the amount owing.

6. The Tenant shall also pay the Landlord compensation of \$10.49 per day for the use of the unit starting December 16, 2025 until the date the Tenant moves out of the unit.
7. If the Tenant does not pay the Landlord the full amount owing on or before February 28, 2026, the Tenant will start to owe interest. This will be simple interest calculated from March 1, 2026 at 4.00% annually on the balance outstanding.
8. If the unit is not vacated on or before February 28, 2026, then starting March 1, 2026, the Landlord may file this order with the Court Enforcement Office (Sheriff) so that the eviction may be enforced.
9. Upon receipt of this order, the Court Enforcement Office (Sheriff) is directed to give vacant possession of the unit to the Landlord on or after March 1, 2026.

December 18, 2025

Date Issued

Panagiotis P. Roupas

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

In accordance with section 81 of the Act, the part of this order relating to the eviction expires on September 1, 2026 if the order has not been filed on or before this date with the Court Enforcement Office (Sheriff) that has territorial jurisdiction where the rental unit is located.

Schedule 1
SUMMARY OF CALCULATIONS

A. Amount the Tenant must pay to void the eviction order and continue the tenancy if the payment is made on or before December 31, 2025

Rent Owing To December 31, 2025	\$3,252.00
Application Filing Fee	\$186.00
Total the Tenant must pay to continue the tenancy	\$3,438.00

B. Amount the Tenant must pay to void the eviction order and continue the tenancy if the payment is made on or before January 31, 2026

Rent Owing To January 31, 2026	\$3,571.00
Application Filing Fee	\$186.00
Total the Tenant must pay to continue the tenancy	\$3,757.00

C. Amount the Tenant must pay to void the eviction order and continue the tenancy if the payment is made on or before February 28, 2026

Rent Owing To February 28, 2026	\$3,890.00
Application Filing Fee	\$186.00
Total the Tenant must pay to continue the tenancy	\$4,076.00

D. Amount the Tenant must pay if the tenancy is terminated

Rent Owing To Hearing Date	\$3,090.35
Application Filing Fee	\$186.00
Total amount owing to the Landlord	\$3,276.35
Plus daily compensation owing for each day of occupation starting December 16, 2025	\$10.49 (per day)
**Ongoing daily compensation continues to accumulate until the total amount owing (excluding costs) is \$50,000.00.	